



CHAPTER lix.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Provisional Order (Marriages) Act 1905. [8th July 1914.] A.D. 1914.

WHEREAS the Right Honourable Reginald McKenna one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Provisional Order (Marriages) Act 1905: 5 Edw. 7. c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed. Order in schedule confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1914. Short title.

A.D. 1914

S C H E D U L E.

WHEREAS power is given to a Secretary of State by the Provisional Order (Marriages) Act 1905 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt:

And whereas the church of St. Mary in the parish of Braisworth in the county of Suffolk in the diocese of Norwich was built and was duly consecrated for the performance of divine service on the twenty-eighth day of January one thousand eight hundred and fifty-eight but it does not appear that any deed of substitution in accordance with the provisions of 8 and 9 Vict. c. 70 or 34 and 35 Vict. c. 90 has ever been executed or that the said church of St. Mary was licensed for the solemnization of marriages until the twenty-third day of September one thousand nine hundred and twelve:

And whereas divers marriages had nevertheless been solemnized in the said church of St. Mary before the twenty-third day of September one thousand nine hundred and twelve:

And whereas the churches of Boraston and Nash in the first portion of the parish of Burford in the county and diocese of Hereford were not licensed for the solemnization of marriages until the fifth day of April one thousand nine hundred and thirteen:

And whereas the church of Whitton in the second portion of the said parish of Burford was not licensed for the solemnization of marriages until the twenty-fourth day of May one thousand nine hundred and thirteen:

And whereas divers marriages had nevertheless been solemnized in the said churches of Boraston and Nash before the fifth day of April one thousand nine hundred and thirteen and in the said church of Whitton before the twenty-fourth day of May one thousand nine hundred and thirteen:

And whereas the chapel of St. Michael in the parish of Withycombe Raleigh in the county of Devon in the diocese of Exeter was built so far as can be ascertained in the year one thousand seven hundred and twenty and was used for the performance of divine service until the year one thousand eight hundred and sixty-five but it does not appear that the said chapel of St. Michael was ever duly constituted the parish church of Withycombe Raleigh or licensed for the solemnization of marriages:

And whereas the church of St. John the Evangelist in the said parish of Withycombe Raleigh was built and was duly consecrated for

divine service on the third day of November one thousand eight hundred and sixty-four and the church so built was intended to be substituted for the old parish church of St. John in the Wilderness Withycombe Raleigh but it does not appear that any deed of substitution in accordance with the provisions of 8 and 9 Vict. c. 70 or 34 and 35 Vict. c. 90 was executed until the seventeenth day of October one thousand nine hundred and twelve or that the said church of St. John the Evangelist had ever been licensed for the solemnization of marriages : A.D. 1914.

And whereas divers marriages had nevertheless been solemnized in the said chapel of St. Michael until the year one thousand eight hundred and sixty-five and in the said church of St. John the Evangelist before the seventeenth day of October one thousand nine hundred and twelve :

And whereas it is expedient in the circumstances aforesaid to remove all doubts touching the validity of the marriages solemnized in the said churches of St. Mary Braisworth Boraston Nash and Whitton in the parish of Burford and St. John the Evangelist Withycombe Raleigh and in the chapel of St. Michael Withycombe Raleigh :

Now therefore I the Right Honourable Reginald McKenna one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Provisional Order (Marriages) Act 1905 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

1. All banns of matrimony and marriages published and solemnized before the twenty-third day of September one thousand nine hundred and twelve in the church of St. Mary in the parish of Braisworth in the county of Suffolk in the diocese of Norwich and all banns of matrimony and marriages published and solemnized before the fifth day of April one thousand nine hundred and thirteen in the churches of Boraston and Nash in the first portion of the parish of Burford in the county of Hereford in the diocese of Hereford and before the twenty-fourth day of May one thousand nine hundred and thirteen in the church of Whitton in the second portion of the said parish of Burford and all banns of matrimony and marriages published and solemnized before and during the year one thousand eight hundred and sixty-five in the chapel of St. Michael in the parish of Withycombe Raleigh in the county of Devon in the diocese of Exeter and before the seventeenth day of October one thousand nine hundred and twelve in the church of St. John the Evangelist in the said parish of Withycombe Raleigh shall be and shall be deemed to have been as valid as if they had been published and solemnized in a church in which banns might be published and marriages solemnized lawfully.

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2. A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriages.

3. The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this twenty-eighth day of August one thousand nine hundred and thirteen.

R. McKENNA

One of His Majesty's Principal
Secretaries of State.

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